THE BOARD OF OPEN SCHOOLING AND VOCATIONAL EDUCATION, SIKKIM BILL, 2026.

(BILL NO. 07 OF 2026)

A

BILL

to provide for the establishment and incorporation of a Private State Board of Open Schooling and Vocational Education in the State of Sikkim and for matters connected therewith and incidental thereto.

WHEREAS, the State of Sikkim is committed to securing inclusive and equitable education for all learners, including those who have missed out on formal schooling, expand access to school education at the secondary and senior secondary levels and to increase retention rates among students in Sikkim;

AND WHEREAS, flexible, open and vocational modes of education are required for the holistic development of the State and its youth;

AND WHEREAS, to obtain the above objectives, it is felt necessary to establish a regulated, accountable and Government-supervised Board of Open Schooling and Vocational Education;

Now therefore, the Smile Navya Foundation, Delhi NCR, a Non-Profit organization, having Certificate No. IN UP61893126011823U dated 18th August, 2022, registered under Indian Trust Act 1882, having its registered office at Ghaziabad, Uttar Pradesh is engaged in the field of education and intends to establish the Board of Open Schooling and Vocational Education for Secondary, Senior Secondary and Skill Education in the State of Sikkim in accordance with provisions of the Act.

BE it enacted by the Legislature of Sikkim in the Seventy-seventh Year of the Republic of India as follows: -

		CHAPTER-I **PRELIMINARY**
Short title, extent and commencement.	1	(1) This Act may be called the Board of Open Schooling and Vocational Education, Sikkim, Act, 2026. (2) It shall extend to the whole of Sikkim. (3) It shall come into force on such date, as the State Government may, by notification in the Official *Gazette*, appoint.
Definitions.	2	(1) In this Act, unless the context otherwise requires, - (a) "academic year" means the academic year as decided by the Board after due consultation with the National Institute of Open Schooling (NIOS) and the State Government; (b) "affiliation" together with its grammatical variations, means and includes, in relation to study-cum-examination centre, located in the State of Sikkim, and the Board including for the purpose of conducting the formal and informal secondary and senior secondary education, open and distance, secondary and senior secondary education, vocational education, skill development programs of the Board; (c) "academic course" means and includes one of the branches of learning in

		programs of students registered or admitted with the board for secondary and senior secondary education, skill and vocational education, imparted in the formal mode or in the informal distance education mode or in thee-learning mode in or through any permitted study centre of the Board; (d) "board" means the Board of Open Schooling and Vocational Education, Sikkim established under section 3; (e) "board of management" means the Board of Management constituted under Section 5; (f) "board of recognition" means the board of recognition of the schools, institution or centre for conduct of informal and open and distance school education; (g) "chairperson" means the Chairperson of the Board as appointed under Section 5; (h) "courses" means open basic education, secondary education, senior secondary education, vocational education and skill training not amounting to higher education or equivalence; (i) "credit" is recognition that a learner has successfully completed a prior course of learning, corresponding to a qualification at a given level; (j) "distance education" includes open and distance or informal education and means education imparted by means of face-to-

		face communication and e-learning source viz broadcasting, telecasting, correspondence courses, seminars, contact programmes and any other such methodology; (k) "department" means Education Department, Government of Sikkim. (l) "employee" means a person appointed by the Board to work in the Board and includes teachers, officers and other employees of the Board; (m) "examination" means an examination conducted through pen and paper mode and face-to-face mode at centres within the State of Sikkim, in accordance with the directions issued by the State Government from time to time. (n) "examination superintendent" means a person appointed as such by the Board for control and supervision of the examinations to be conducted by the Board; (o) "fee" means monetary collection made by the Board from the students; (p) "guardian" in relation to a child, means a person having the care and custody of that child and includes a natural guardian or guardian appointed or declared by a Court or a statute; (q) "government" means State Government of Sikkim;

		(r) "head of the study-cum-examination centre" means the person in-charge of the study-cum-examination centre as appointed by the Board; (s) "knowledge" means the outcome of the assimilation of information through learning. Knowledge is the body of facts, principles, theories and practices that is related to a field of work or study, Knowledge may be prescribed as theoretical and/or factual; (t) "learner" refers to a student or an individual undergoing skill development , whether in a formal or informal setting; (u) "learning outcomes" represent what a learner knows, understands and is able to do on completion of a learning process, which also includes expression, terms of knowledge, skills and competence; (v) "local student" means a student in possession of Certificate of Identification issued by the State Government or whose natural guardian is a holder of Certificate of Identification; (w) "local bodies" means Gram Panchayat, Zilla Panchayat, Municipal Corporations, Municipal Councils and Nagar Panchayats; (x) "managing committee" means the Managing Committee constituted by t society or the governing body of the study-cum-examination centre;

		(y) "member" means a member of the Board and includes the Chairperson and Vice-Chairperson thereof; (z) "non local student" is one who is not local student as defined under clause (v) of section 2; (aa) "official gazette" means the Official Gazette of the State of Sikkim; (bb) "online education" means and includes virtual education or informal education imparted by means of e-communication viz e-learning, broadcasting, telecasting, correspondence courses, seminars, contact programmes and any other such methodology; (cc) "open school" means all the schools, institution or centre of the board located within Sikkim including itself for conduct of informal and open and distance school education; (dd) "parent" means either the biological or step or adoptive father or mother of a child; (ee) "permission certificate" means the certificate issued by the State Government under clause (a) of sub-section (7) of section 3; (ff) "plus, two scheme" means the scheme of education where education is imparted for the two additional successive classes immediately following matriculation;

		(gg) "private board" means the Board of Open Schooling and Vocational Education, Sikkim established under section 3; (hh) "recognition" means the formal acknowledgment, approval, or accreditation granted by the appropriate Government, the Council of Boards of School Education in India (COBSE), or any other competent statutory or regulatory authority, authorising the Board to conduct its academic programmes, examinations, and to issue certificates, subject to such terms and conditions as may be prescribed or imposed under any law for the time being in force; (ii) "qualification" means a formal outcome of an assessment and validation process which is obtained when a competent body determines that an individual has achieved learning outcomes to given prescribed standards; (jj) "regulation" means the regulations made under this Act; (kk) "study-cum-examination centre" means a counseling center or a study center or information center or a facilitation center or examination centre, established or maintained or recognized or accredited by the Board for the purpose of teaching, advising, counseling,

		examination or for rendering any other assistance required by the students; (ll) "school education" means all education up to the twelfth class, which is a flexible, alternative system of learning through which students can complete their education at their own pace and schedule, typically through self-study and distance or e-learning, catering to those unable to attend traditional schools due to personal, social, or economic reasons; (mm) "secretary" means the Secretary of the Board appointed under section 5; (nn) "skills" means the ability to apply knowledge and use know-how to complete tasks and solve problems. Skills are described as cognitive (involving the use of logical, intuitive and creative thinking) or practical (involving manual dexterity and the use of methods, materials, tools and instruments); (oo) "sponsoring body" means the Smile Navya Foundation, Delhi NCR, a non-profit organization registered under Indian Trust Act 1882; (pp) "trainer" means someone who is qualified to train, instruct, teach or otherwise enable the learner(s) to acquire the appropriate knowledge and skills; (qq) "vice-chairperson" means the Vice-Chairperson of the Board appointed by the sponsoring body under section 5;

		(rr)"vocational education" means imparting Vocational courses in a certain specialization at a certain level along with General Education under National Skill Qualification Framework.
		CHAPTER-II **ESTABLISHMENT OF THE BOARD**
Establishment and Incorporation of the Board	3	(1) As soon as may be after the commencement of this Act, the Sponsoring Body or its successors shall seek approval for the establishment of a private Board from the appropriate Government or the appropriate regulatory authority, as applicable. (2) The provisions of this Act shall not come into force until such approval has been obtained, and all conditions thereof have been duly satisfied. (3) The Board shall be established as a private, self-financed body corporate, having perpetual succession and a common seal, with power to acquire, hold and dispose of property, and to sue and be sued by the said name, subject to the regulatory oversight of the State Government, which shall be limited to matters concerning academic standards, public interest, and compliance with applicable laws.

		(4) The Headquarters of the Board shall be situated at Jorethang, Namchi District, Sikkim. (5) The Board shall establish study-cum-examination centres in all the districts of the State and shall establish such additional centres within Sikkim as may be deemed necessary. (6) The building infrastructure shall have a total built-up area of not less than 8,000 (Eight Thousand) square feet. This area shall be distributed to include, at a minimum: (i) Administrative offices for the Chairperson, Secretary, and staff; (ii) A secure, fire-proof Strong Room (up to 800 sq. ft.) for the custody of sensitive examination materials; (iii) A Record Room for the permanent archival of learner data and tabulation registers; (iv) An Information Technology or IT Server Room and a Public Grievance Redressal Counter.

		(7) (a) Notwithstanding anything contained in this Act, the Board shall not commence any academic programs, admissions, or examinations unless and until a "Permission Certificate" to operate is issued by the State Government. (b) The State Government may impose such conditions in the Permission Certificate as it may deem fit in the interest of students and the public, and the Board shall be bound to comply with all such conditions. (c) The State Government may, after giving an opportunity of being heard, withdraw, suspend or modify the Permission Certificate for breach of any of the provisions of this Act. (8) No certificate, mark-sheet, or other academic award issued by the Board shall be deemed valid for any purpose whatsoever, including admission, employment, higher studies or public certification unless the Board obtains and maintains due recognition from the appropriate Government, Council of Boards of School Education in India (COBSE) or from the appropriate regulatory body or competent authorities as applicable under any law for the time being in force.

		(9) The Board shall obtain the requisite permission or recognition from the appropriate Government, Council of Boards of School Education in India (COBSE) or any other appropriate regulatory body governing open schooling, school education, vocational education, skill-based qualifications or any allied field, and shall ensure continuous compliance with the norms, standards and conditions laid down by such authorities. (10) The State Government may, at any time, call for records, documents and reports relating to the Board's compliance with the appropriate Government , Council of Boards of School Education in India (COBSE) and other regulatory requirements, and may issue such directions as it deems necessary in the interest of students and the integrity of public certification. (11) In the event of any violation or failure to secure or maintain recognition from the appropriate Government, Council of Boards of School Education in India (COBSE) or any other relevant authority, the State Government may suspend, cancel, or withdraw the right of the Board to issue certificates or may take such other action as may be expedient, without prejudice to any penalty provided elsewhere under this Act.

		(12) The Board shall prominently publish on its website all public materials, the status of its recognition from the appropriate Government, Council of Boards of School Education in India (COBSE) and other statutory authorities to ensure transparency for students, parents and other stakeholders.
Nature of Courses.	4	(1) The Board may offer and conduct the following categories of courses, namely:- (a) Secondary Education; (b) Senior Secondary Education; (c) Vocational Education; (d) Skill Education Training. (2) All courses under sub-section (1) shall be up to pre-degree level which shall not constitute to be a higher education and therefore shall not in themselves require prior approval of higher education regulatory bodies. (3) The Board shall not conduct or represent itself as conducting any programme in the nature of higher education without specific enabling legislation or approval from the State Government.
		CHAPTER-III **GOVERNANCE AND MANAGEMENT**
Constitution of the Board of Management	5	(1) The Board of Management of the Board shall consist of the following members, namely: —

		(a) An officer of the Sponsoring Body – Chairperson, *ex officio*; (b) An officer of the Sponsoring Body – Vice-Chairperson, *ex officio* ; (c) Two officials of the Education Department, Government of Sikkim, to be nominated by the State Government – Members, *ex officio* ; (d) One educationist to be nominated by the State Government- Member; (e) Two representatives of the Sponsoring Body, being Heads or In-charges of study centers under the Board with at least five years of experience in the field of education – members; (f) Two persons nominated by the Board of Management (subsequent to its establishment) from amongst eminent individuals, one with experience in industry and one with experience in open school education – members; (g) The Secretary of the Board, appointed by the Sponsoring Body – Member Secretary. (2) The Constitution of the Board of Management shall be notified by the Secretary of the Board to the State Government.

		(3) The nominees of the Government of Sikkim shall be present in each meeting in which decisions on issues involving Government policies or instructions are to be taken.
Term of office of the members of the Board of Management.	6	(1) A member of the Board of Management, other than an *ex officio* member, shall hold office for a term of three years from the date of his or her assumption of office. (2) A member, other than an *ex officio* member, shall be eligible for re-nomination for another term upon expiry of the first term: Provided that no person shall serve as a member under this sub-section beyond the age of sixty-five years. (3) Notwithstanding anything contained in this provision or the statutes made hereunder, the term of all members nominated by the State Government shall continue to be governed exclusively by the service conditions, orders, instructions, and regulations issued by the Government of Sikkim from time to time and no provision of this Act or of any statute made hereunder shall be construed to alter, diminish, or otherwise affect the

		applicability of such orders or service conditions to them.
Disqualification supervening membership of the Board.	7	(1) If the Chairperson, Vice-Chairperson, Secretary or any other member of the Board becomes subject to any of the disqualifications specified in section 12, he shall cease to be the Chairperson, Vice-Chairperson, Secretary or other member, as the case may be. (2) Notwithstanding anything contained in this provision or the statutes made hereunder, all members nominated by the State Government shall continue to be governed exclusively by the service conditions, orders, instructions, and rules and regulations applicable to the state government employees and no provision of this Act or of any rules and regulations made hereunder shall be construed to alter, diminish, or otherwise affect the applicability of such orders or service conditions to them.
Filling up of casual and emergent vacancies.	8	(1) If the Chairperson or Vice-Chairperson or any other member, other than an ex officio member dies or resigns from his office or otherwise ceases to be the Chairperson, Vice-Chairperson or other member, the vacancy shall be filled up by a fresh appointment or nomination, as the case may be, as early as possible by the State Government or the sponsoring body who

		had appointed or nominated such a member: Provided that the person appointed or nominated as a member on casual and emergent vacancy shall remain member only for the remaining period of the term of the member in whose place he is appointed or nominated.
Term of Office of Chairperson and Vice-Chairperson.	9	(1) The appointment of Chairperson, Vice-Chairperson, and Secretary under sub-section (1) of section 5 shall be for such period as the sponsoring body may decide and specify. (2) On the expiry of the period of appointments as aforesaid, the Chairperson, the Vice-Chairperson and the Secretary may be re-appointed for such period as the sponsoring body may determine. However, the total period of appointment (including the period of re-appointment) as Chairperson, Vice-Chairperson, and Secretary shall not exceed six years: Provided that the person re-appointed for such period shall not exceed 65 years of age.
Resignation.	10	(1) The Chairperson, Vice-Chairperson and Secretary may resign from his office by giving 60 days notice in writing to the Sponsoring Body, stating his intention to do so, and on such resignation being accepted by the Sponsoring Body, the

		Chairperson or the Vice-Chairperson or Secretary, as the case may be, shall be deemed to have vacated his office. (2) The Sponsoring Body may also *suo moto* terminate the services of the Chairperson, Vice-Chairperson, and Secretary without any kind of notice, if their functioning is found detrimental to the purpose or interest of the Board. (3) Any other member other than the nominees of the State Government may resign from his office by giving thirty days' notice in writing to the Chairperson, stating his intention to do so, and from such date his resignation is accepted by the Chairperson such member shall be deemed to have vacated his office.
Temporary arrangement for the office of the Chairperson.	11	If the Chairperson dies or resigns from his office or ceases to hold office or is temporarily absent, or, for any reason, is unable to exercise the powers and perform the duties of his office, the Sponsoring Body shall authorize the Vice-Chairperson to exercise the powers and perform the duties of the Chairperson until the Chairperson resumes office or a new Chairperson is appointed, as the case may be.
Disqualification.	12	(1) A person shall be disqualified for being appointed or nominated as a member of the Board if he: -

		(a) has been adjudged by a competent court to be of unsound mind; (b) is an undischarged insolvent; (c) is a discharged insolvent who has not obtained from the court a certificate that his insolvency was caused by misconception without any misconduct on his part; (d) has been convicted by a court of an offence involving moral turpitude; (e) has been punished for indulging in or promoting unfair practice in the conduct of any examination, in any form, anywhere. (f) if he is guilty of an act of falsification, willful negligence or omission in the discharge of the duties and functions delegated under this Act or by orders issued by the State Government from time to time. (g) If he is guilty of disgraceful conduct or unbecoming of a public servant punishable by any law for time being in force.
Meetings of the Board.	13	(1) The Board of Management shall meet at least once in every calendar year as its annual meeting, and may meet more often as decided by the Chairperson. (2) An absolute majority i.e., fifty percent

		(50%) of the total members of the Board of Management shall constitute the quorum for any meeting of the Board of Management: Provided that the presence of both the State Government nominees shall be mandatory for any meeting dealing with academic policy or other important matters. (3) Meetings of the Board of Management shall be convened by the Secretary with at least ten days' notice to all members, along with the agenda prepared in consultation with the Chairperson. However, in case of any emergency, the Chairperson may direct the Secretary to convene an urgent meeting at shorter notice of not less than two days, to consider specified urgent matters.
Conduct of Meetings.	14	(1) The Chairperson, or in his absence the Vice-Chairperson, shall preside over the meetings of the Board of Management. (2) The person presiding over a meeting shall have the right to vote on any matter and, in the event of an equality of votes, shall have a second or casting vote to break the tie.
Conflict of Interest.	15	(1) No member of the Board of Management shall vote on any matter in which he or she has a personal or pecuniary interest.

		(2) If any question arises as to whether a member is disqualified from voting on a particular matter by virtue of sub-section (1), the Chairperson (or the Vice-Chairperson presiding over the meeting) shall decide the question, and such decision shall be final.
Employees of the Board.	16	(1) The Board shall have a Secretary, who shall be appointed by the Sponsoring Body and shall perform such functions as may be assigned by the Board or as prescribed by regulations. (2) The Board shall have an Examination Superintendent, who shall be appointed by the Sponsoring Body in consultation with the State Government, and who shall oversee and supervise the conduct of examinations of the Board, subject to the provisions of this Act and rules made hereunder. (3) In addition to the Chairperson, Vice-Chairperson, Secretary and Examination Superintendent, the Sponsoring Body may appoint such other officers of the Board as it may consider necessary for carrying out the purposes of this Act. (4) The Board may, in accordance with its regulations and with the approval of

		the Sponsoring Body, employ such number of teachers, administrative staff, and other employees as are necessary for the efficient functioning of the Board. (5) The terms and conditions of service of the employees of the Board shall be such as determined by the Board with the approval of the Sponsoring Body. (6) The mode of recruitment for posts created by the Board may be on a regular basis, contract basis, or for specific assignments on fixed remuneration, as the Board may deem appropriate. (7) The scales of pay, honorarium, or remuneration for the various posts in the Board shall be decided by the Board of Management with the approval of the Sponsoring Body.
		CHAPTER-IV **POWERS AND FUNCTIONS**
Powers and functions of the Board of Management.	17	(1) The Board of Management shall be the principal executive body of the Board and shall exercise all the powers and perform

		all the functions of the Board, including the following: — (a) to expand access to school education at the secondary and senior secondary levels and to increase retention rates among students in Sikkim; (b) to promote open schooling by networking with existing educational institutions and through capacity building, resource sharing, and quality assurance measures; (c) to identify and remove barriers that prevent children and adult learners from accessing education up to the pre-degree level, including secondary, senior secondary, vocational and skill programs, particularly for disadvantaged groups, so as to bring such groups into the mainstream education fold; (d) to contribute to the universalization of secondary and senior secondary education and address the educational needs of all segments of society, including out-of-school youth and adults; (e) to undertake research, innovation and development activities in the area of open schooling, and to disseminate the findings of such research for continuous improvement of open and distance learning systems;

		(f) to design, develop, and offer courses of study and training programs in the areas of open basic education, secondary education, senior secondary education, vocational education and skill education training, as identified and approved by the State Government from time to time; (g) to establish and maintain study centers across the State of Sikkim, for providing academic support, contact classes, and counseling to students enrolled in the Board's programs; (h) to seek and obtain permission or No Objection Certificates from the State Government, as required by law or policy, for establishing new study centers within the state of Sikkim, for introducing new courses or programs up to the pre-degree level, and for conducting examinations for such programs; (i) to organize information centers, workshops, camps, seminars, conferences, and other academic events for disseminating information and enhancing skills in areas related to open schooling, vocational , arts, culture, and lifelong learning; (j) to develop and prescribe the curriculum, syllabus, study materials (including self-instructional materials), and assessment methodologies for the

		courses of study offered by the Board, aligning them with the National Education Policy and the guidelines of the State Government and national bodies such as National Institute of Open Schooling (NIOS) wherever applicable; (k) to conduct examinations in pen and paper mode in the study centres for the courses and programmes offered by the Board, and to evaluate and publish the results of such examinations in a timely manner; (l) to issue certificates, diplomas, or other academic or skill qualifications to learners who have successfully completed the respective courses and passed the examinations conducted by the Board; (m) to institute and award prizes, medals, scholarships or other incentives to meritorious students as the Board may deem fit; (n) to prescribe and levy fees and other charges for various courses, examinations, or services provided by the Board, and to collect and utilize such fees in the manner prescribed by regulations; (o) to collaborate or enter into agreements with other institutions, boards, councils or organizations, whether within Sikkim, at national level or at international level

		with agencies like NIOS, NCERT, NIEPA, Commonwealth of Learning, UNESCO, etc. for sharing best practices, improving quality standards, and promoting open schooling after obtaining prior approval of the state or the central government wherever required; (p) to partner with relevant government schemes and programs in the school education and skill development sectors, in order to further the educational objectives of the State; (q) to establish equivalences and linkages with other formal education systems such as State Boards, Central Boards, Sanskrit Boards, Madrasa Boards, and Open School Boards of other states, to facilitate mobility of students and mutual recognition of qualifications; (r) to publish or facilitate the publication of textbooks, study guides, journals, research papers and multimedia learning materials for the courses under the Board; (s) to create committees or sub-committees for academics, examination, finance, syllabus or for other purposes as required and to prescribe their functions through regulations for the efficient achievement of the Board's objectives;

		(t) to enforce discipline and proper conduct among the employees, students, and affiliated study centers of the Board, and to take such disciplinary actions as may be necessary in accordance with the rules and regulations of the Board; (u) to acquire, hold, and dispose of property, both movable and immovable, for the purposes of the Board, subject to the prior approval of the State Government in case of any mortgage or lease of such property, especially in the event of dissolution as provided under this Act; and (v) to perform all such acts and things, whether incidental to the above functions or not, as may be required in order to further the objectives of the Board as a provider of open school education and training. (2) The Board of Management shall exercise its powers and perform its functions under this Act in accordance with such directions or guidelines as may be issued by the State Government from time to time in the interest of maintaining appropriate standards of education.

Powers and functions of the Chairperson.	18	(1) The Chairperson shall be the principal executive and academic officer of the Board and shall preside over the meetings of the Board of Management and ensure that the decisions of the Board are implemented properly. (2) The Chairperson shall exercise such other powers and perform such other functions as may be prescribed by the regulations or as may be delegated by the Board of Management.
Powers and functions of the Vice-Chairperson.	19	(1) The Vice-Chairperson shall assist the Chairperson in all matters and shall preside over meetings or perform the duties of the Chairperson in the event of the absence or inability of the Chairperson. (2) The Vice-Chairperson shall also oversee the functioning of various committees of the Board as assigned and shall exercise such powers and perform such functions as may be prescribed or as may be delegated by the Board of Management or the Chairperson.
Powers and functions of the Secretary.	20	(1) The Secretary of the Board shall be responsible for the day-to-day administration of the Board's office, for

		maintaining records, and for coordinating the various activities of the Board. (2) The Secretary shall prepare the agenda notes and minutes of meetings, manage correspondence, and perform such other duties as may be prescribed or assigned by the Board of Management.
Powers and functions of the Examination Superintendent.	21	(1) The Examination Superintendent shall be responsible for making all necessary arrangements for the fair and smooth conduct of examinations of the Board, including the setting of question papers (in consultation with examination committees), appointment of paper-setters, moderators, invigilators and evaluators, fixation of examination centres, and declaration of results. (2) The Examination Superintendent shall perform these functions under the general superintendence of the Board and in accordance with any guidelines issued by the State Government or the Board of Management.
		CHAPTER-V **COMMITTEES OF THE BOARD**
Academic Advisory Committee	22	(1) There shall be an Academic Advisory Committee of the Board consisting of seven academicians in different

		branches of knowledge, four of whom shall be nominated by the Board of Management and three shall be nominated by the State Government out of whom at least one shall be a woman. (2) The Academic Advisory Committee shall advise the Board on matters related to curricula, syllabi, textbooks, pedagogy, evaluation techniques and any academic innovations to improve the quality of education imparted by the Board. It may also recommend measures for teachers capacity building at the study centers. (3) The members of the Academic Advisory Committee (other than *ex officio* members, if any) shall have a term of three years and may be re-nominated for another term, subject to any age limit prescribed. A member of this Committee shall cease to hold office upon ceasing to be a member of the Board of Management. (4) Any member of the Academic Advisory Committee may resign by giving fifteen days' notice to the Vice-Chairperson of the Board. The Board of Management shall have the power to remove any non-government member of the Academic Advisory Committee for reasons to be recorded in writing;

		Provided that no resignation or removal of a State Government-nominated member of the Academic Advisory Committee shall take effect without prior approval of the State Government.
Other Committees of the Board.	23	(1) The Board may constitute such other committees as it deems necessary for the smooth functioning of the Board, including but not limited to a Finance Committee, Examination Committee, Syllabus Committee or others. (2) The Syllabus Committee, shall follow and recommend syllabi, courses of study, modes of examination, and assessment frameworks, which may be in line with those of the National Institute of Open Schooling (NIOS) or as prescribed by the State Government, with suitable modifications for the State's needs. (3) The Examination Committee, shall advise the Board on all matters related to the conduct of examinations, selection of examination centres, appointment of paper-setters, moderators, tabulators, evaluators, and other aspects of assessment and certification. (4) The Finance Committee, shall prepare budget estimates for the Board and advise the Board on financial matters such as

		expenditure control, resource mobilization and investments, as may be referred to it by the Board of Management. (5) Any other committee constituted by the Board shall perform such functions as may be assigned to it by the Board of Management. The Vice-Chairperson of the Board shall normally chair such committees (unless decided otherwise by the Board), and each such committee may have up to seven members as determined by the Board. (6) Each committee constituted under this section shall have a Secretary (convener) appointed by the Vice-Chairperson with the consent of the Chairperson. In the case of an Examination Committee, the Secretary (convener) of that committee shall be an officer designated as the Controller of Examinations, who shall be appointed by the Sponsoring Body.
		CHAPTER-VI **ADMISSION**
Admission of Students	24	(1) Admission to any study center established or affiliated with the Board shall be open to all persons above the age of fourteen years who shall possess an Automated Permanent Academic Account Registry (APAAR) identity card, subject to fulfillment of the prescribed

		eligibility criteria and payment of the requisite fees. No eligible learner shall be denied admission on the basis of religion, race, caste, sex, or place of birth. (2) The Board shall prescribe, by regulations, the detailed conditions, criteria and procedure for admission of students to the various courses offered by the Board (including requirements of prior qualifications for secondary or senior secondary courses, if any, and the maximum number of subjects or attempts allowed; Provided that students who are not residents of Sikkim (non-local students) and who enroll in the Board's programs shall not be entitled, by virtue of such enrollment, to any special benefits, reservations, quotas or scholarships that are extended by the Government of Sikkim exclusively to the domiciled residents of Sikkim.
		CHAPTER-VII **FEES, EXAMINATIONS AND RECOGNITION**
Fee Structure.	25	(1) The Board shall prescribe the fee structure for admission, examination, certification, and all other services for the various courses conducted by the Board.

		(2) The fees and charges shall be fixed in a reasonable manner keeping in view the cost of operations and in consultation with the State Government, and the Board shall ensure that students from economically weaker sections are not denied the opportunity to study due to financial constraints (through appropriate measures like scholarships or fee concessions as may be decided by the Board).
Conduct of Examinations.	26	(1) All examinations of the Board shall be conducted in pen-and-paper mode at the designated study-cum-examination centres, under the supervision of invigilators and officials appointed by the Board. (2) All examinations shall be conducted with prior information to the State Government. (3) Physical attendance of each candidate at the examination centre shall be compulsory and shall be recorded by the invigilator. (4) The Board shall take all necessary measures to prevent unfair practices in the conduct of examinations and shall

		impose strict penalties on any misconduct as per the regulations. (5) Any use of unfair means or indiscipline during examinations by a candidate or at a study centre shall be dealt with in accordance with the provisions of this Act and the rules made hereunder.
Maintenance of Records.	27	(1) The Board shall maintain complete, accurate, and up-to-date records of all students enrolled in its programs. Such records shall include the personal details of each student, details of courses or subjects registered, attendance (if applicable), assessment and examination results, and any certificates or qualifications awarded. (2) The records shall be maintained in a manner that is verifiable and easily auditable. (3) The Board shall preserve these records for such period as may be prescribed and shall make them available for inspection by the State Government or any authority authorized by the State Government, as and when required. (4) The Board shall, after the completion of every Board examination, furnish a certified hard copy of all relevant records,

		including but not limited to tabulation registers, results, and such other documents as may be prescribed, to the Education Department, Government of Sikkim, within one month of declaration of result.
Validity of Certificates and Recognition.	28	(1) Any certificate, mark-sheet or other academic qualification issued by the Board to a student shall be valid and recognized for all legitimate purposes, including but not limited to further education and employment and be at par with the equivalent certificates issued by any other recognized board of school education in India. (2) Notwithstanding the general validity of the Board's certificates, the Board shall commence issuance of such certificates only after it has obtained the necessary Permission Certificate from the State Government and complied with any conditions or authorizations required from the appropriate authorities of the Central Government in charge of school education.
		CHAPTER-VIII **ANNUAL REPORT AND BUDGET**

Annual Report.	29	(1) The Board of Management shall, at the end of each financial year, prepare an Annual Report on the working and activities of the Board during that year. (2) The Annual Report shall detail the steps taken by the Board towards fulfillment of its objectives, full details of the child inclusive of name, full address, parents details and contact details of the child enrolled, programs offered, examinations conducted, results published, and other significant achievements or challenges. (3) The Annual Report, duly approved by the Board of Management, shall be submitted to the State Government by 31st August of each year.
Budget.	30	(1) The Chairperson shall, in each financial year, cause to be prepared and laid before the Board of Management a budget estimate in the prescribed form of the income and expenditures of the Board for the next financial year. The Board of Management shall discuss and approve the budget estimate with or without modifications. (2) The budget as approved by the Board of Management shall be forwarded to the Sponsoring Body for its review and

		comments. The Sponsoring Body shall, within one month of receiving the budget, either accord its approval or return the budget to the Board of Management with its comments and suggestions if it finds that: (i) the estimates are not reasonable or accurate based on available information; (ii) new items of recurring expenditure have been included that the Board is unlikely to be able to meet from its income; or (iii) provisions for expenditure have been made which are not in accordance with the provisions of this Act. (3) If the budget is returned by the Sponsoring Body under sub-section (2), the Board of Management shall reconsider the suggestions made by the Sponsoring Body and may revise the budget accordingly. The revised budget shall then be resubmitted to the Sponsoring Body for approval. If the Board of Management does not accept any suggestion of the Sponsoring Body, it may resubmit the budget in its original form along with its reasons. (4) If the Sponsoring Body does not convey its approval or final comments on the budget within two months of the resubmission of the budget under sub-section (3), the

		budget as last submitted (with or without revisions) shall be deemed to have been approved by the Sponsoring Body. (5) No expenditure shall be incurred by the Board in excess of the budgeted amount or on an item not provided for in the budget without the prior approval of the Sponsoring Body, except in case of an emergent situation as may be defined by rules.
		CHAPTER-IX **FUNDS, ACCOUNTS AND AUDIT OF THE BOARD**
Establishment of Operational Fund.	31	(1) The Board shall establish and maintain a fund to be called the "Operational Fund" to ensure the financial stability and continuous operation of the Board's administrative and academic functions. (2) The Sponsoring Body shall, upon the commencement of this Act, make an initial contribution of Rupees One Crore (1,00,00,000) into the Operational Fund to serve as the initial working capital.
Credits to the Operational Fund.	32	The following shall be credited to the Operational Fund –

		(a) the initial contribution made by the Sponsoring Body; (b) all fees and charges received by the Board, including admission fees, examination fees, affiliation fees from study centers, and certification charges; (c) grants, subsidies, or voluntary contributions received from any statutory body; (d) income from the sale of textbooks, syllabus documents, and application forms; (e) interest earned on the temporary investment of surplus moneys from this fund.
Application of the Operational Fund.	33	The moneys in the Operational Fund shall be applied for the following purposes, namely:- (a) The payment of monthly salaries, allowances, provident fund contributions, and other benefits to the Chairperson, Secretary, officers, and employees of the Board; and (b) for meeting expenses incidental to the conduct of examinations, including remuneration to paper setters, moderators, invigilators, and evaluators; (c) Payment of rent or lease charges for the Headquarter building and study centres at

		Jorethang and other districts, electricity, water, and communication charges; (d) Preparation of self-learning materials, organization of teacher workshops, and digital platform maintenance.
Maintenance of Fund and Minimum Reserve.	34	(1) The Operational Fund shall be kept in a separate account in a Scheduled Bank situated in Jorethang. (2) The account shall be operated jointly by the Secretary and the Chairperson or any authorized officer. (3) The Board shall maintain a minimum reserve balance of rupees 50 (fifty) Lakhs in the Operational Fund at all times, equivalent to the estimated expenditure on salaries and rent for a period of 3 (three) months. If the balance falls below this limit, the Sponsoring Body shall immediately transfer funds to restore the reserve.
General and Development Fund.	35	(1) There shall be established a "General and Development Fund" to which shall be credited any surplus transferred from the Operational Fund at the end of the financial year, bequests, and specific capital grants. (2) This Fund shall be utilized for long-term asset creation, construction of permanent buildings and institution of student scholarships. (3) No amount shall be transferred to the General and Development Fund from the Operational Fund unless all accrued liabilities for salaries and examination costs

		for the relevant financial year have been fully discharged.
Audit.	36	(l) The account of the Board shall be examined and audited annually by an auditor or auditors appointed by the Sponsoring Body in such manner as may be prescribed. (2) It shall be the duty of the Board and every member thereof and of the Secretary and other officers and employees in the service of the Board to provide to the auditor every facility for the examination and audit of the accounts of the Board and to comply with any requisition made by the auditor and the requirements of any rule made in this behalf.
Submission of Report	37	A copy of the annual accounts together with the audit report and the annual report shall be submitted to the Sponsoring Body and the State Government.
Dissolution of the Board	38	(1) If the sponsoring body proposes to dissolve itself according to the provisions of law governing its constitution or incorporation, it shall record reasons thereof and give at least 1 year prior notice to the State Government. (2) Notwithstanding, anything contained in the provisions of this Act, where the sponsoring body intends to dissolve the Board, the dissolution process there under shall be as follows:

		(a) resolution to be passed by the sponsoring body that it intends to dissolve and halt operations of the Board; (b) after the passage of the resolution as described in clause (a), a notice will thereafter be issued by the sponsoring body to the Government, 1 (one) year prior to cessation of operations; (c) the sponsoring body shall halt intake of fresh admissions, upon passage of resolution under clause) (a) and issuance of notice under clause (b) above; (d) upon completion of syllabus of the last batch of students admitted in the Board and in addition to the passage of one year after the notice period, the State Government shall make by way of notification dissolve the Board; (e) The Board shall, at all times, maintain an up-to-date, complete and verifiable database/record repository of all matters relating to the Board, including— (i) student particulars and enrolment records; (ii) attendance, examination forms, and other individual documents of individual child; (iii) question papers, answer sheets, assessment records, tabulation registers, test papers, test question papers and all results; (iv) mark sheets, certificates,

		migration/transfer documents and all other credentials issued; and (v) any other record, document or data as may be prescribed. (f) The custody, preservation and maintenance of the database and records referred to in sub-section (2) of section 43, including their indexing, security, integrity and retrieval, shall, upon dissolution of the Board, vest in the owners or controlling shareholders of the Company or the individual members of the Sponsoring Body, and the Individuals shall be the custodian thereof. (g) Every office bearer, employee or person-in-charge authorised by the Sponsoring Body for maintenance of records under this section shall be individually responsible to ensure that the database and records remain up-to-date, accurate and readily retrievable, in such manner as may be prescribed. (h) Upon dissolution of the Board, the individual member or members of the Sponsoring Body shall ensure that verification services and access to records are provided, and that information/documents required for verification, whether by a student, institution, employer, authority or any person, are made readily available.

		(i) The State Government shall not be liable or responsible, either directly or indirectly, for maintenance, custody, verification, issuance of duplicates, authentication, or any consequence arising out of non-availability, deficiency or tampering of records after dissolution of the Board, and all such responsibility and liability shall rest solely upon the Sponsoring Body. (j) Subject to the laws prevalent in the State of Sikkim, where upon the dissolution of the Board, there remains, after the satisfaction of all its issues, debts and liabilities any movable property whatsoever, the same shall vest upon each individual of the sponsoring body: Provided that in the event of dissolution of the Board there remain, any debts or liabilities exceeding the valuation of the movable and immovable properties of the Board, the said outstanding debts and liabilities shall vest upon the Sponsoring Body.
Power of the State Government to issue directions.	39	(1) The State Government may, for the purpose of ascertaining the standards of teaching, course materials, study centers, syllabus, examination and research or any other matter relating to the Board, cause an assessment to be made in such manner as may be prescribed, by such person or persons as it may deem fit.

		(2) The State Government shall communicate its recommendations to the Board on the basis of such assessment for corrective action. The Board shall adopt such corrective measures and make efforts so as to ensure the compliance of the recommendations. (3) The State Government may give such directions as it may deem fit if the Board fails to comply with the recommendation made under sub-section (2) within a reasonable time. The directions given by the State Government shall be immediately complied by the Board.
Special Powers of the State Government under certain circumstances.	40	(1) Where the State Government is of the opinion that the Board has contravened any of the provisions of this Act, the rules or the regulations made hereunder or has violated any of the directions or guidelines issued by it under this Act or a situation of financial mismanagement or mal-administration has arisen in the Board, it shall issue the notice requiring the Board to show cause within 45 (forty-five) days as to why the Board should not be dissolved or the Act be repealed. (2) On receipt of reply of the Board on the notice issued under sub section (1), if the State Government is satisfied that there is a

		prima facie case of contravention of any of the provisions of this Act, the rules or the regulations made hereunder or violation of any directions or guidelines issued by it or there is financial mismanagement or maladministration, it shall make an order of such inquiry as it may consider necessary. (3) The State Government may, by notification for the purposes of any such inquiry under sub-section (2), appoint an inquiry officer or officers to inquire into any of the allegations and to make report thereon. (4) The inquiry officer or officers appointed under sub-section (3) shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 while trying a suit in respect of the following matters, namely:- (a) summoning and enforcing the attendance of any person and examining him on oath; (b) requiring the discovery and production of any such document or any other material as may be predicable in evidence; (c) requisition of any public record from any office. (5) On receipt of the inquiry report from the officer or officers appointed under sub-section (3), if the State Government is satisfied that the Board has contravened all

		or any of the provisions of this Act, the rules, the regulations made hereunder or has violated any of the directions or guidelines issued by it or a situation of financial mis-management and maladministration has arisen in the Board which threatens the academic standard of the Board, it may appoint an administrator. (6) The administrator appointed under sub-section (5) shall exercise all the powers and perform all the duties of the Board of Management under this Act and shall administer the affairs of the Board until the last batch of the students have completed their courses and they have been awarded with pass certificates or awards. (7) After having been awarded the pass certificates or awards, as the case may be, to the last batches of the students of the courses, the administrator shall make a report to that effect to the State Government. (8) On receipt of the report under sub-section (7), the State Government may by notification dissolve the Board.
Power to make rules	41	(1) The Board may make rules after consultation with the State Government for carrying out the purposes of this Act. (2) In particular, and without prejudice to the generality of the foregoing powers such rules

		may provide for all or any of the following matters: - (a) the acquisition, possession and disposal of property by the Board, the conditions of such acquisition, possession and disposal and the doing of any other thing; (b) the general fund as may be instituted and administered by the Board; (c) the form and manner in which the Budget Estimate of the Board shall be prepared; (d) the time within which the Budget Estimate shall be forwarded to the Sponsoring Body; (e) the manner in which all payments to and from the fund of Board shall be made. (f) the manner of re-appropriation. (g) the manner of keeping of accounts of receipts and expenditure. (h) the manner in which examination and audit of accounts of the Board shall be made; (i) the reports, returns and statements to be furnished by the Board and the form of such reports, returns and statements: and (j) any other matter required to be prescribed, or to be provided for, by rules.

Power to make regulations	42	(1) The Board may by notification make regulations for carrying out the purposes of this Act. (2) Such regulations made shall not be inconsistent with the provisions of this Act and rules in respect of any matters relating to the proper exercise of its powers and discharge of its functions under this Act or any other matter.
Accountability and Transparency	43.	(1) the Board shall, at all times, maintain an up-to-date, complete and verifiable database/record repository of all matters relating to the Board, including— (i) student particulars and enrolment records; (ii) attendance, examination forms, and other individual documents of individual child; (iii) question papers, answer sheets, assessment records, tabulation registers, test papers, test question papers and all results; (iv) mark sheets, certificates, migration/transfer documents and all other credentials issued; and (v) any other record, document or data as may be prescribed. (2) The custody, preservation and maintenance of the database and records, including their indexing, security,

		integrity and retrieval, shall, vest in the owners or controlling shareholders of the Company or the individual members of the Trust, and the Individuals shall be the custodian thereof. (3) Every office bearer, employee or person-in-charge authorised by the Sponsoring Body for maintenance of records under this section shall be individually responsible to ensure that the database and records remain up-to-date, accurate and readily retrievable, in such manner as may be prescribed. (4) The individual member or members of the Sponsoring Body shall ensure that verification services and access to records are provided, and that information/documents required for verification, whether by a student, institution, employer, authority or any person, are made readily available. (5) The records shall be maintained in a manner that is verifiable and easily auditable. (6) The Board shall preserve these records for such period as may be prescribed and shall make them available for inspection by the State Government or any authority authorized by the State Government, as and when required.

Liability of the Board and the Sponsoring Body.	44	(1) Notwithstanding anything contained in this Act or in any other law for the time being in force, every certificate, mark sheet, award, diploma, course certificate, migration/transfer certificate, result, or any other credential (by whatever name called) issued, published, authenticated, counter-signed, digitally generated, or represented by the Board at any time, shall be and shall always be deemed to have been issued solely on the responsibility and authority of the Board and the Sponsoring Body, and not on behalf of the State Government. (2) The Sponsoring Body, and each individual member thereof (including owners, trustees, directors, office-bearers, controlling persons, or persons having management or decision-making control, by whatever designation called) shall be jointly and severally liable and accountable, for— (a) the truthfulness, legality, validity and verifiability of every credential referred to in sub-section (1); (b) the maintenance, custody, integrity, auditability and timely retrieval of all underlying records, data and documents supporting such credential; (c) any misrepresentation, suppression, fraud, forgery, manipulation, tampering, irregularity, or unfair practice, whether by act or omission, in relation to admissions, examinations, evaluation, publication of results, issue of credentials, or any allied process; and

		(d) all civil consequences, including but not limited to refunds, restitution, compensation, damages, costs, penalties, and claims arising from or connected with the Board's credentials and operations. (3) Any such liability shall be continuing and shall not be extinguished by resignation, cessation of membership, dissolution, winding up, closure of operations, repeal of the Act, or any change in the constitution or control of the Sponsoring Body. (4) The State Government and its officers shall not be liable or responsible, either directly or indirectly, for— (a) the issue, genuineness, validity, equivalence, recognition, or acceptability of any credential of the Board; (b) any misrepresentation or assurance made by the Board, the Sponsoring Body, any centre, or any person claiming under them; (c) any loss, prejudice, or adverse consequence suffered by any student, parent, institution, employer, authority or any person due to any act or omission of the Board or the Sponsoring Body; or (d) maintenance, custody, verification, issuance of duplicates, authentication, correction, or re-issuance of any credential or record of the Board, whether during the subsistence of the Board or thereafter. (5) The Sponsoring Body and each individual member thereof shall indemnify and keep indemnified the State Government, its officers and instrumentalities from and against all claims, proceedings, liabilities,

		costs, losses and expenses of whatsoever nature arising out of— (a) any act, omission, representation, advertisement, promise or conduct of the Board/Sponsoring Body; or (b) any credential referred to in sub-section (1) and any record connected therewith. (6) Without prejudice to any other action under this Act, where the State Government is satisfied that any misrepresentation, fraud, or irregularity has occurred in relation to any credential, it may, after recording reasons in writing— (a) direct the Board/Sponsoring Body to issue public clarification, undertake verification, and take corrective measures within a stipulated time; (b) recover costs/expenses incurred by the State Government for any inquiry, verification, or protective action, from the Sponsoring Body, and where necessary; and (c) initiate such proceedings as may be permissible in law against the Sponsoring Body and/or the individual members thereof. (7) The Board shall, at all times, maintain an up-to-date, complete and verifiable database/record repository of all matters relating to the Board, including— (i) student particulars and enrolment records; (ii) attendance, examination forms, and other individual documents of individual child; (iii) question papers, answer sheets,

		assessment records, tabulation registers, test papers, test question papers and all results; (iv) mark sheets, certificates, migration/transfer documents and all other credentials issued; and (v) any other record, document or data as may be prescribed. (8) The custody, preservation and maintenance of the database and records referred to in sub-section 2 of section 43, including their indexing, security, integrity and retrieval, shall, upon dissolution of the Board, vest in the owners or controlling shareholders of the Company or the individual members of the Sponsoring Body, and the Individuals shall be the custodian thereof. (9) Every office bearer, employee or person-in-charge authorised by the Sponsoring Body for maintenance of records under this section shall be individually responsible to ensure that the database and records remain up-to-date, accurate and readily retrievable, in such manner as may be prescribed. (10) Upon dissolution of the Board, the individual member or members of the Sponsoring Body shall ensure that verification services and access to records are provided, and that information/documents required for

		verification, whether by a student, institution, employer, authority or any person, are made readily available. (11) The State Government shall not be liable or responsible, either directly or indirectly, for maintenance, custody, verification, issuance of duplicates, authentication, or any consequence arising out of non-availability, deficiency or tampering of records after dissolution of the Board, and all such responsibility and liability shall rest solely upon the Sponsoring Body. (12) Subject to the laws prevalent in the State of Sikkim, where upon the dissolution of the Board, there remains, after the satisfaction of all its issues, debts and liabilities any movable property whatsoever, the same shall vest upon each individual of the sponsoring body: Provided that in the event of dissolution of the Board there remain, any debts or liabilities exceeding the valuation of the movable and immovable properties of the Board, the said outstanding debts and liabilities shall vest upon the Sponsoring Body. The provisions of this section shall have effect notwithstanding anything inconsistent therewith contained in this Act, the rules, regulations, statutes, or any agreement, memorandum, undertaking or arrangement.

Endowment Fund	45	(1) The sponsoring body shall establish an Endowment Fund for the Board with an amount of Rs.2,00,00,000/- (two crore), which shall be pledged to the Government of Sikkim. (2) The Endowment Fund shall be used as security deposit to ensure that the Board complies with the provisions of this Act and functions as per the provisions of this Act. (3) The State Government shall have the power to forfeit, a part or whole of the Endowment Fund in case the Board or the sponsoring body contravenes with any of the provisions of this Act, the regulations or the rules made there under. (4) The Board may with the permission of the State Government utilize the income from the Endowment Fund for the development of infrastructure of the Board and not to meet the recurring expenditure of the Board. (4) The amount of Endowment Fund may be invested in such instruments as the Government may prescribe and kept invested until the dissolution or winding up of the Board. (5) In case of investment in long term security, the certificates of the securities shall be kept in the safe custody of the Government and in case of deposit in the interest-bearing Personal Deposit account in the Government Treasury, deposit shall be made with the condition that the amount shall not be withdrawn without the permission of the Government.

		(6) All fines imposed under this act, if not paid within the time specified, can be recovered from the Endowment Fund by the State Government.
Power to remove difficulties.	46	(1) If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by order published in the Official Gazette, make provisions, not inconsistent with the provisions of this Act, as appear in it to be necessary or expedient for removing the difficulty: Provided that no order under this section shall be made after the expiry of a period of five years from the date of commencement of this Act. (2) Every order made under this section shall, as soon as may be after it is made, shall be laid before the House of the State Legislature.

STATEMENT OF OBJECTS AND REASONS

Whereas, the Smile Navya Foundation, Delhi NCR, a Non-Profit organization, registered under Indian Trust Act 1882, having its registered office at Ghaziabad, Uttar Pradesh is engaged in the field of education and intends to establish the Board of Open Schooling and Vocational Education for Secondary and Senior Secondary level in the State of Sikkim. The proposed Private Board aims to enable access to school education at the secondary and senior secondary levels and to increase retention rates among students in Sikkim.

The Private Board also proposes to identify and remove the barriers that prevent children and adult learners from accessing education up to the pre-degree level, including secondary, senior secondary, vocational and skill education programs, particularly for disadvantaged groups, so as to bring such groups into the mainstream education fold.

With the above objectives in view, the Bill has been framed.

(RAJU BASNET)
MINISTER-IN-CHARGE,
EDUCATION DEPARTMENT,
GOVERNMENT OF SIKKIM.

MINISTER
Education, Sports & Youth Affairs
Law and PA Department
Government of Sikkim

FINANCIAL MEMORANDUM

(NIL)

(SANDEEP TAMBE)
PRINCIPAL SECRETARY,
EDUCATION DEPARTMENT,
GOVERNMENT OF SIKKIM

Principal Secretary
Education Department
Govt. of Sikkim

MEMORANDUM REGARDING DELEGATED LEGISLATION

1. Clause 3 empowers the Sponsoring Body to establish a Board by the name "the Board of Open Schooling and Vocational Education";

2. Clause 22 provides for constitution of Academic Advisory Committee;

3. Clause 23 of the Bill empowers the Board to constitute other committees if deemed necessary;

4. Sub-clause (2) of clause 24 of the Bill empowers the Board to prescribe by regulations, the detailed criteria and procedure for admission.

5. In sub-clause (2) of clause 38–

   (a) entry (a) empowers the sponsoring body to pass resolution to dissolve and halt operations of the Board;

   (b) entry (b) provides for issue of notice to the government by the sponsoring body;

   (c) proviso to clause (d) empowers the state government to appoint an administrator.

6. Clause 39 of the Bill empowers the State Government to issue directions to the Board.

7. In clause 40–

(a) sub-clause (3) empowers the state government to appoint an inquiry officer; and

(b) sub-clause (5) empowers the state government to appoint an administrator;

(c) sub-clause (8) empowers the state government to dissolve the Board by notification.

8. Clause 42 empowers the Board to make regulations.

9. Clause 45 of the Bill seeks to empower the state government to remove difficulty, within a period of five years for giving effect to the provisions of the Bill.

The above delegations are of normal character and mainly relate to the matter of details.